



File No.: EXP202212708

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 10, 2022, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, the respondent) for considering that his right of access had not been duly attended to.

The complainant states that, following the receipt of several communications from debt collection companies requesting payment of a debt on behalf of the respondent, on August 24, 2022, he requested access to his personal data subject to processing, specifically adding the following: "I request that I be informed which specific debt collection company/companies have been provided with my personal data and, in the event that the debt has been assigned to a third party, the identity of the assignee."

On September 20, 2022, he received a response from the respondent providing access to his personal data subject to processing, responding generically regarding the possible assignees of his data.

Along with the complaint, he submitted a copy of the access request (dated August 6, 2022), proof of sending (dated August 24, 2022), and a copy of the response received dated September 20, 2022.

The respondent indicated in its response to the transfer of the complaint carried out by this Agency that they had sent a letter to the complainant, via postal mail, informing him that his personal data had not been assigned to any entity, while also indicating the debt collection entities that manage the debt on behalf of BBVA.

Furthermore, the respondent states that, on December 30, 2022, upon becoming aware of his complaint before the Spanish Agency for the Protection of Data, it sent him a new letter, informing him, in summary, that

"Regarding Esco Expansión sl, we inform you that it is a company that manages debt recovery with which this Entity works and acts as a mere intermediary for the provision of a service to BBVA.

In any case, we would like to inform you that BBVA is in a position to reach a satisfactory agreement for both parties regarding the payment of your debt, for which you can contact Esco Expansión sl, which is the company currently in charge of the amicable management of the case. (...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

In relation to your request for information regarding the different debt management companies to which your personal data may have been provided, we inform you that, in addition to Esco Expansión sl, which is the company currently in charge of the amicable management of the case, your debt has been managed by Team 4 Collection and Gescobro Collection."

Therefore, it was considered that the right had been attended to.

SECOND: Dissatisfied with the resolution, the complainant filed a motion for reconsideration providing new facts.

The corresponding Reconsideration Procedure was instructed, in which the respondent was given the opportunity to be heard, and the Director of this Agency accepted it because

"In relation to the exercise of the right of access to the personal data of the appellant, which emphasized knowing to which companies their data had been assigned, the respondent stated in the response to the request for information that said data had not been assigned to any entity, while indicating the debt collection entities that manage the debt.

However, it has not been proven that the respondent has responded to the appellant regarding the

facts mentioned in the appeal, nor is there any record that these have been delivered in the legally prescribed terms, or the reason why it has not been possible. There is also no evidence of compliance with the duty to respond as required by Article 12.4 of the LOPDGDD.”

THIRD: As a result of the acceptance of the aforementioned Reconsideration Motion, the present Rights Procedure was opened, transferring the documentation to the respondent, so that within ten working days it could present the allegations it deemed appropriate, stating, in summary, that “(...) As stated in the background of EXP202212708 on 30/12/2022, through postal communication sent to your correspondence address, the SAC (Customer Service) provided you with detailed information identifying the Debt Management Companies to which your personal data may have been provided, these being ESCO EXPANSIÓN S.L, TEAM 4 COLLECTION, and GESCOBRO COLLECTION. This party understands that regarding this point, a proper response was given to the complainant, Mr. A.A.A., without the documentation provided inferring that information has been provided to companies other than the aforementioned or that there are new events.

SECOND. - ASSIGNMENT OF THE DEBT

As stated in the background of EXP202212708, my represented party communicated on 30/12/2022 through postal communication sent to your correspondence address, the SAC (Customer Service) that the debt of the loan

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/7

***LOAN.1 has not been assigned, and as of today, BBVA is the holder of it, with the management of the debt being carried out by Esco Expansión S.A on behalf of BBVA. For the appropriate purposes, we attach as Document No. 1 the communication sent to the claimant with reference number

***REFERENCE.1 dated 30/12/2022. (...)”

FOURTH: After examining the document submitted by the responding party, it is conveyed to the claimant that, in summary, and as far as this procedure is concerned, it states that it has not received the communication that the responding party claims to have sent on December 30, 2022.

FIFTH: After granting a hearing to the responding party, there is no record that any document has been received by this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with that authority.

This procedure is initiated due to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/7

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such a request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible form, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation of...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

whether or not personal data concerning them is being processed and, in that case, the right of access to personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the “data or processing activities referred to in the request.” The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The Rights Procedure is initiated as a consequence of the denial of any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to those rights will be analyzed and evaluated, excluding the other issues raised.

In this case, and taking into account what is stated in the first paragraph of this Legal Basis, from the examination of the documentation provided during the processing of this procedure, it has been established that the complaining party requested access to their personal data, adding, "I request that I be informed which specific debt collection company/companies my personal data has been communicated to and, in the event that the debt has been assigned to a third party, the identity of the assignee," and that the responding party initially replied in a generic manner without specifying the assignees, stating that during the

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/7

The instruction of this file has sent the claimant a document providing said data.

However, the claimant indicates that they have not received it, and the respondent has not provided any documentary evidence that allows considering that it has been sent, and therefore, fulfilled the duty of response established in Article 12.4 of the LOPDGGD, "The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party shall fall on the responsible party."

It cannot be accepted that the response that corresponds can be manifested on the occasion of a mere administrative procedure, such as the submission of allegations in this proceeding, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the responsible parties must issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of said request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Since the duty to respond to the claimant informing them about the decision made regarding the request for the exercise of rights is not evidenced, it is appropriate to uphold the complaint that originated this proceeding.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for

Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge BANCO BILBAO VIZCAYA ARGENTARIA, S.A. with NIF A48265169, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions carried out as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es